

The Motion for Summary Judgment shall either be continued for the court to receive and review the associated Opposition documents or be continued further out for additional discovery and briefing.

CASE #	CASE NAME	HEARING NAME
CVPS2404465	HARB VS COHEN	MOTION TO BE RELIEVED AS COUNSEL FOR SI HARB

Tentative Ruling: No tentative ruling. Hearing is vacated.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2404465	HARB VS COHEN	MOTION TO BE RELIEVED AS COUNSEL FOR ROBERT REINER

Tentative Ruling: No tentative ruling. Hearing is vacated.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2404465	HARB VS COHEN	MOTION TO BE RELIEVED AS COUNSEL FOR GRANT ENTERTAINMENT, LLC, AN OHIO LIMITED LIABILITY COMPANY

Tentative Ruling: No tentative ruling. Hearing is vacated.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2406454	GUBIN VS MAJER	MOTION TO COMPEL PLAINTIFF AMY PENN'S FURTHER RESPONSE TO FORM INTERROGATORIES BY DENNIS N. WALSH TRUSTEE OF DENNIS N. WALSH REVOCABLE

Tentative Ruling: A party may file a motion compelling further answers to interrogatories and requests for production if it finds that the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (Code Civ. Proc., §§ 2030.300, 2031.310.) Unless notice of the motion is given within 45 days of the service of the response, or any supplemental response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response. (*Id.* at §§ 2030.300(c), 2031.310(c).) On the merits, there are two distinct issues: (1) the impact of the default and (2) whether a cross-defendant can serve plaintiffs discovery.

On the former, a defendant in default has no rights in litigation until it moves to set aside the default or default judgment is entered. (*Devlin v. Kearny Mesa AMC/Jeep/Renault, Inc.* (1984) 155 Cal.App.3d 381, 385-386.) However, Walsh, individually, is only defaulted on the complaint—not the cross-complaint. Plaintiffs assert that Walsh individually and as trustee are the same, by citing to *Aulisio v. Bancroft* (2014)

230 Cal.App.4th 1516, 1542-1525. But, *Aulisio* involved whether a trustee could be self-represented in a lawsuit, or whether he needed counsel. *Aulisio* is not on point. The fact remains that Walsh, as a trustee, is not defaulted on the cross-complaint, and therefore, is an active party in this litigation.

The more salient issue is whether a cross-defendant can serve plaintiffs discovery. Plaintiffs rely on *Shearer v. United California Theatres* (1955) 133 Cal.App.2d 720, 723, which held that “cross-actions are distinct and independent causes of action.” However, that was in the context of whether a plaintiff could appeal the granting of a summary judgment entered in favor of cross-defendants. (*Id.* at 721.)

It is true that cross-complaints are “generally considered to be a separate action from that initiated by the complaint.” (*Ohio Casualty Ins. Group v. Superior Court* (1994) 30 Cal.App.4th 444.) However, the discovery statutes provide “any party may obtain discovery...of any other party to the action.” (Code Civ. Proc., § 2030.010(a) [interrogatories]; 2031.010 [requests for production].) As one treatise notes: “Whether ‘any other party to the action’ allows parties to a *cross-complaint* to serve others who are parties to the main action only is unclear.” (Weil & Brown, *California Practice Guide: Civil Procedure Before Trial* §8:920 (Rutter Group 2026).) Weil and Brown observe: “For *pleading* purposes, a cross-complaint is regarded as a separate proceeding, *not* the same ‘action’ as the complaint.” (*Id.* at §8:921.) “However, for *discovery* purposes, parties to the complaint and cross-complaint should be treated as parties to the same ‘action,’ so as to permit service of interrogatories between P [party] and TP [third party]. Otherwise, to obtain discovery from each other, depositions would be required.” (*Id.* at §8:922.) For example, if the cross-complaint were actually a separate action, then Cross-Defendant could still obtain discovery via subpoenas.

As note by case law, the scope of discovery is broad. (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 541.) The discovery statutes must be construed liberally in favor of discovery. (*Ibid.*) Under Code of Civil Procedure section 2017.010:

Unless otherwise limited by order of the court in accordance with this title, **any party** may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. **Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action.** Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document, electronically stored information, tangible thing, or land or other property.

Thus, the question is relevancy.

Equitable indemnity ‘applies in cases in which one party pays a debt for which another is primarily liable and which in equity and good conscience should have been paid by the latter party.’” (*United Services Auto. Ass’n v. Alaska Ins. Co.* (2001) 94 Cal.App.4th 638, 644-645.) “Equitable indemnity principles govern the allocation of loss

or damages among multiple tortfeasors whose liability for the underlying injury is joint and several. Such principles are designed, generally, to do equity among defendants who are legally responsible for an indivisible injury by providing a basis on which liability for damage will be borne by each joint tortfeasor 'in direct proportion to [its] respective fault.'" (*Expressions at Rancho Niguel Assn. v. Ahmanson Development* (2001) 86 Cal.App.4th 1135, 1139-1140, citing *American Motorcycle Assn. v. Sup. Ct.* (1978) 20 Cal.3d 578, 597-598.) Thus, the elements are: "(1) a showing of fault on the part of the indemnitor and (2) resulting damages to the indemnitee for which the indemnitor is equitably responsible." (*C.W. Howe Partners, Inc. v. Mooradian* (2019) 43 Cal.App.5th 688, 700.) Thus, Cross-Defendant's liability is at issue for his defense to the indemnity claims. Therefore, the discovery is relevant.

Cross-Defendant/Cross-Complainant Dennis N. Walsh Trustee of Dennis N. Walsh Revocable Trust's Motion to Compel Further Response to Form Interrogatories GRANTED.

Plaintiff Amy Penn to provide code compliant, verified responses, without objection, within 20 days.

Cross-Defendant/Cross-Complainant's Request for Sanctions DENIED.

Plaintiff's Request for Sanctions DENIED.

Trial Setting Conference continued to 10.27.26.

Counsel ordered to file a Trial Setting Conference declaration 10 days in advance of hearing regarding mediation/ADR/ trial length in hours/ discovery/witnesses/interpreters/ status of settlement/special issues regarding evidence or exhibits/mutually agreeable trial dates within 6 months of the TSC as required by PS1 Law and Motion Rules. Failure to file can/will result in sanctions without further notice and the Court picking a firm trial date that will not be moved absent good cause.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2406454	GUBIN VS MAJER	MOTION TO COMPEL PLAINTIFF AMY PENN'S FURTHER RESPONSE TO DEMAND FOR PRODUCTION OF DOCUMENTS BY DENNIS N. WALSH TRUSTEE OF DENNIS N. WALSH REVOCABLE

Tentative Ruling:

Cross-Defendant/Cross-Complainant Dennis N. Walsh Trustee of Dennis N. Walsh Revocable Trust's Motion to Compel Further Response to Demand for Production GRANTED.

Plaintiff Amy Penn to provide code compliant, verified responses and responsive documents, without objection, within 20 days.